

25STCV10462 25STCV10462

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-08-04

Motion: DEFENDANT'S MOTION FOR RECONSIDERATION

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Case Number: 25STCV10462 Hearing Date: August 4, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

ANDREA MARQUEZ, an individual,

Plaintiff,

vs.

GENERAL MOTORS LLC, a Delaware
Limited Liability Company; and DOES 1 through 20, inclusive,

Defendants.

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CASE NO: 25STCV10462

[TENTATIVE] ORDER RE: DEFENDANT'S
MOTION FOR RECONSIDERATION

Dept. 731

August 4, 2026

8:30 a.m.

Moving Party: Defendant, General Motors, LLC

Opposing Party: Plaintiff, Andrew Marquez

Notice: OK

Background Facts

Plaintiff Andrew Marquez sues

Defendant General Motors, LLC and Does 1 through 20 pursuant to a May 15, 2026,
Second Amended Complaint ("SAC") alleging statutory and common law claims arising
from Plaintiff's lease of a 2024 Chevrolet Blazer manufactured, sold,
distributed, and/or imported by Defendant.

On May 12, 2026, the Court granted

an opposed, March 23, 2026, motion by Plaintiff to compel the deposition of putative General Motors employee, Kelsea Smith, which General Motors objected to on various grounds, including that Kelsea Smith was not at that time a General Motors employee, a representation which the Court did not credit.

Now before the Court is General Motors' motion for reconsideration of the Court's May 12, 2026, Order.

Motion for Reconsideration

Preliminary Matter –
Different Judicial Officer Ruling on Present Motion than Prior Motion

"Generally, one trial judge may not review the ruling of another trial judge because the superior court, although comprised of many judges, is a single court. [Citation.] This principle, however, does not apply where the original judge is 'unavailable.' [Citation.]" (Geddes v. Superior Court (2005) 126 Cal.App.5th 417, 426.)

Here, the May 12, 2026, order was made by the Honorable Mel Red Recana, a retired judge serving temporarily as a bench officer for the Los Angeles Superior Court, i.e., a judge "unavailable" for the present motion's purposes.

Accordingly, this Court under its current judicial officer proceeds with an analysis of the motion for reconsideration.

b. Legal
Standard

A motion for reconsideration is used to ask the court to modify, amend, or revoke its earlier order on a prior motion to the court because of new or different facts, circumstances, or law. (Code Civ. Proc., § 1008, subd. (a).) Such an order may involve an interim or final order (see Code Civ. Proc., § 1008, subds. (e), (h)), where an interim order is an intermediate ruling of some kind that requires further proceedings before the suit can be resolved, and where a final order is an order that finally disposes of the suit (see People v. DeLouize (2004) 32 Cal.4th 1223, 1231 [differentiating between interim and final orders]).

A motion for reconsideration may be brought by a party or by the court on its own motion. (See Code Civ. Proc., § 1008, subds. (a), (c).) The grounds for the motion vary depending on whether a party or the Court is making the motion. (See Code Civ. Proc., § 1008, subds. (a), (c), (e).)

A party may move for reconsideration based on: (1) new or different facts, (Code Civ. Proc., § 1008, subd. (a); see e.g., *In re Marriage of LaMoure* (2013) 221 Cal.App.4th 1463, 1473 [reconsideration motion granted on new evidence]); (2) new or different circumstances, (Code Civ. Proc., § 1008, subd. (a)); and (3) new or different law, (Code Civ. Proc., § 1008, subd. (a); *Baldwin v. Home Sav. of Am.* (1997) 59 Cal.App.4th 1192, 1196.) However, a party cannot move for reconsideration based on the court's erroneous order, i.e., the court's misinterpretation of facts or law. (See *Jones v. P.S. Dev. Co.* (2008) 166 Cal.App.4th 707, 724, disapproved on other grounds by *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 531-532, 532 n. 4; *Gilbert v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) Instead, a party can suggest to the court that it should reconsider its erroneous order on its own motion so long as the suggestion is not made ex parte. (*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1108; see e.g., *In re Marriage of Spector* (2018) 24 Cal.App.5th 201, 214-15 [emails husband sent to court about erroneous order were not ex parte because wife was copied on all emails].)

Discussion

After review, the Court finds in favor of Plaintiff.

As argued in Plaintiff's opposition, all General Motors' bases for relief involve facts that were or could have been before Judge Recana on May 12, 2026. General Motors' motion's arguments section is broken into three pieces: the first subsection addressing an alleged improper shift of the burden of proof by Judge Recana vis-à-vis whether General Motors employed Ms. Smith as of May 12, 2026; the second arguing that Judge Recana misstated General Motors' opposition and moreover did not allow General Motors to clarify that misunderstanding; and the third arguing that this Court has no authority to compel General Motors to produce a non-affiliated witness or to pay sanctions for failure to produce Ms. Smith.

(Motion, pp. 5-6.) None of these grounds state new or different facts, law, or circumstances that were not available on May 12, 2026, nor do the moving papers point to any authority that supports an interpretation of these grounds as new or different facts, law, or circumstances. General Motors thus in essence seeks a second bite at the apple, submitting evidence purporting to show new facts, but really, attempting to re-argue the point of whether Kelsea Smith in fact was a General Motors employee when the Court made its May 12, 2026, order.

The Court thus reads General Motors' motion as one for reconsideration insofar as the moving party requests that the Court reconsider its erroneous order by way of the present noticed motion rather than presenting new or different facts, law, or circumstances.

However, the Court declines to exercise its discretion to reconsider the May 12, 2026, order, which the Court determines is supported by the record, as set forth in the order.

The Court closes with two brief points.

First, over Plaintiff's opposition objections, the Court is satisfied with the form of the declarations filed with the moving papers, which set forth the basis for relief as required in Code of Civil Procedure section 1008 and *Branner v. Regents of the Univ. of Cal.* (2009) 175 Cal.App.4th 1043 (*Branner*). (See Code Civ. Proc., §§ 1008, subd. (a) [motion must include affidavit], 2015.5 [motion may use declaration instead of affidavit]; cf. *Branner*, *supra*, at p. 1048 [motion was invalid because it did not include either an affidavit or a declaration].)

Second, Plaintiff's opposition devotes several pages to arguing why General Motors' filing of its motion constitutes conduct supporting sanctions pursuant to Code of Civil Procedure section 128.7. (Opposition, pp. 6-8.) The Court is not convinced. As discussed above, the Court reads the motion for reconsideration as a request by a party, not made *ex parte*, but rather, by noticed motion, for reconsideration based on the Court's own discretion.

d. Conclusion

In conclusion, Defendant General

Motors, LLC's motion for reconsideration is DENIED.

Defendant General Motors, LLC is
ordered to give notice.

Parties who intend to submit
on this tentative must send an email to the court at indicating intention to submit on the tentative
as directed by the instructions provided on the court website at www.lacourt.org. If
the department does not receive an email indicating the parties are submitting
on the tentative and there are no appearances at the hearing, the motion may be
placed off calendar. If a party
submits on the tentative, the party's email must include the case number and
must identify the party submitting on the tentative. If the parties do not submit on the
tentative, they should arrange to appear remotely.

DATED: August 4, 2026 _____

MARK C. KIM

Judge of the
Superior Court